

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN VENEZUELA

INTRODUCTION & FRAMEWORK

Across Venezuela, and above all south of the Orinoco, communities discover that the forest they live in, the river they drink from, and the land their people have held for generations has been opened to mining — by decree, by an armed group, or by both at once: a gold or coltan pit, a dredge tearing up a riverbed, a militarised "mining zone," an airstrip and a camp where a forest used to be. The first sign is often the mercury in the fish, the malaria, the outsiders with weapons, or the discovery that your territory sits inside a "strategic development zone" no one ever asked you about. The hardest truths must come first. Venezuela's institutions have collapsed as protectors of the environment and of rights: the courts are not independent, the ministries promote extraction, and domestic remedies, real on paper, rarely function against a project the state and its allied armed groups want. Much of the destruction is driven not by an ordinary company but by armed actors — Venezuelan *sindicatos*, Colombian guerrilla groups, and their entanglement with parts of the military — so confronting them directly is not opposition but mortal danger. And the danger to those who document and speak is severe. And yet there are truths on the other side: the Orinoco Mining Arc was created **without the environmental-impact study the Constitution requires (Article 129)** and **without the free, prior, and informed consultation of Indigenous peoples it requires (Article 120)**, and the National Assembly formally rejected it — so by Venezuela's own supreme law, the project is illegal. That illegality, unenforceable at home, is a powerful instrument abroad. This guide does not promise victory. But the levers, mostly international, are real.

A community in Venezuela works, of necessity, mostly from outside and with the greatest care, for much of the harm is enforced by armed men — and the tools, though narrow, are real. The distinctive lever is the **constitutional illegality**: the Orinoco Mining Arc was created without the environmental-impact study the Constitution requires under **Article 129**, and without the free, prior, and informed consultation of Indigenous peoples it requires under **Article 120**, and the National Assembly formally rejected it — so by Venezuela's own supreme law the project is illegal, an illegality unenforceable at home but a powerful instrument abroad. The **international human-rights and environmental bodies** — the Inter-American Commission on Human Rights and the United Nations bodies — have taken up the lack of consultation and the human and environmental toll. The **Indigenous peoples' rights and territorial defence** are a real, rights-based foundation, as Indigenous peoples organise to defend their territories. The **international documentation and the global concern for the Amazon** have begun to put the Arco Minero before a watching world. And the gold, coltan, and diamonds that flow to global markets can be reached through the **mercury and responsible-sourcing frameworks**. These tools are general — the constitutional illegality, the international bodies, the Indigenous rights, the documentation, and the sourcing frameworks reach the mining harms across the Amazon and Orinoco south, with the Arco Minero the central case. But these tools have grave limits, and this guide states them plainly. Venezuela's institutions have collapsed as protectors, so domestic remedies rarely function. Much of the destruction is driven by armed actors, and confronting them directly is not opposition but mortal danger. The danger to those who document and speak is severe — journalists detained, communities threatened and displaced. And there is no promise of victory. So the work must run mostly from outside — external, documentary, and Indigenous-led where safe — and above all protect everyone, never confronting the armed actors and never exposing anyone. And the honest prize is the constitutional illegality carried abroad, the international bodies engaged, the Indigenous rights defended, the harm documented before the world, the gold's sourcing pressed — from outside, and protecting everyone.

Above all, protect the people.

The Whole Strategy in One Idea

You cannot rely on collapsed domestic institutions, and you must never confront the armed actors who enforce much of the harm or expose anyone who documents it. What can be done runs mostly from outside: carry the constitutional illegality — a project built without the required environmental study and Indigenous consultation, and rejected by the National Assembly — to the international bodies where it bites; engage the Inter-American Commission and the UN on the lack of consultation and the toll; anchor the fight in Indigenous rights and territorial defence; document the harm before a world that cares about the Amazon; and press the gold and coltan through the mercury and sourcing frameworks — all from safer ground, and protecting everyone.

Be Honest About Which Fight You're In

Venezuela is among the hardest and most dangerous settings in this guide, and honesty about that is the first and gravest discipline. The institutions have collapsed as protectors; domestic remedies rarely function; much of the destruction is driven by armed actors, so confronting them is mortal danger; the danger to those who document and speak is severe; and there is no promise of victory. This is not a fight for domestic confrontation. It is external, documentary, and Indigenous-led work whose realistic prize is the constitutional illegality carried abroad, the international bodies engaged, the Indigenous rights defended, and the harm documented — while everyone is protected absolutely and the armed actors are never confronted.

HOW THE SYSTEM WORKS

Who Actually Decides

Domestic institutions have collapsed as protectors, so the decisions a careful effort can reach run mostly outside: the **international human-rights bodies** — the Inter-American Commission and the UN — that have taken up the harm; the **constitutional illegality** the National Assembly affirmed, usable abroad; the **Indigenous peoples and their rights**; the **international documentation networks and the world's Amazon concern**; and the **gold and coltan buyers** reachable through sourcing frameworks. Nothing runs safely through the captured courts or ministries, or through confronting the armed actors. Map the external levers, and never confront the armed men, before spending a week on it.

How the Harm Moves — and Where You Jump In

The harm moves by decree and by armed force: a mining zone declared, an armed group moving in, a river dredged, a forest cleared. You enter not by confronting the armed actors — which is mortal danger — but from outside: through the constitutional illegality carried to the international bodies; through the Indigenous rights and territorial defence; through documentation before the world; and through the gold's sourcing frameworks. Enter externally, on the illegality and the international space, and protect everyone.

Follow the Money and the Permissions

Follow the illegality: the Arco Minero built without the Article 129 study and the Article 120 consultation, and rejected by the National Assembly. Follow the armed actors: who controls a mining zone — but never confront them. Follow the gold and coltan: the mercury, and the global buyers reachable through sourcing frameworks. Follow the rights: the Indigenous territories and the international bodies that defend them. The leverage lies in the constitutional illegality, the international bodies, the Indigenous rights, and the sourcing

frameworks.

Who's Supposed to Be Watching

Domestic oversight has collapsed, so the watchers a careful case engages are the Inter-American Commission and the UN bodies, the international documentation networks, the Indigenous rights organisations, the world's Amazon concern, and the gold and coltan sourcing frameworks. The constitutional illegality and the Indigenous rights give the external watchers real handles, from outside.

QUICK REFERENCE: SUCCESS RATES

No effort inside Venezuela safely confronts the armed actors or relies on the collapsed courts, and honesty requires saying so plainly — the danger is grave. What the external tools can deliver is the constitutional illegality carried abroad, the international bodies engaged, the Indigenous rights defended, and the harm documented before the world. The single most decisive move is **carrying the constitutional illegality — a project built without the required study and consultation, and rejected by the National Assembly — to the international human-rights bodies and the world**, because the project is illegal by Venezuela's own supreme law, and that illegality, unenforceable at home, is a powerful instrument abroad. The constitutional illegality is the distinctive lever; the international bodies and Indigenous rights the foundation; the documentation and sourcing frameworks the reach. The realistic prize is external pressure and exposure, not a domestic stop.

STEP 1: TARGET IDENTIFICATION

Ask five questions, all external and safety-first. **What is the harm?** — the mining zone, the dredge, the cleared forest, the mercury. **What makes it illegal?** — the missing Article 129 study, the missing Article 120 consultation, the National Assembly's rejection. **Whose rights does it violate?** — the Indigenous peoples' territories and rights. **What international body reaches it?** — the Inter-American Commission, the UN, the sourcing frameworks. **How is everyone protected, and the armed actors avoided?** — the overriding questions. Pick the harm the constitutional illegality, the international bodies, or the Indigenous rights can reach safely, from outside.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Build the case carefully, mostly from outside, never exposing anyone. **Layer one: the harm** — the mining, the mercury, the deforestation, the displacement, documented by satellite, international monitoring, and safely gathered testimony. **Layer two: the illegality and the rights** — the missing Article 129 study, the missing Article 120 consultation, the National Assembly's rejection, and the Indigenous territorial rights violated. **Layer three: the channel and the safety** — which international body, Indigenous organisation, or sourcing framework to engage, and the absolute discipline of never confronting the armed actors or exposing anyone. A case built on the constitutional illegality and the Indigenous rights, carried from outside, is one the international bodies can act on and one that keeps everyone safe.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the mining, mercury, deforestation, and displacement, by satellite and safe testimony. Gather the **illegality record**: the missing Article 129 study, the missing Article 120 consultation, the National Assembly's rejection. Gather the **rights record**: the Indigenous territories and rights violated. Gather the **channel record**: the Inter-American Commission, the UN bodies, the Indigenous organisations, the sourcing frameworks. Gather the **safety discipline**: confirm nothing confronts the armed actors or exposes anyone.

STEP 3: BUILDING THE EXTERNAL AND INDIGENOUS COALITION

The coalition here is external and Indigenous-led, because domestic confrontation is mortal danger. Build it from the **Indigenous peoples and their rights organisations**, defending their territories; the **international human-rights and environmental bodies** — the Inter-American Commission, the UN; the **international documentation networks and the Amazon movement**; and the **diaspora and safely-gathered voices**. Frame everything around the constitutional illegality and the Indigenous rights; never confront the armed actors; and protect everyone absolutely.

STEP 4: THE CONSTITUTIONAL ILLEGALITY, THE INTERNATIONAL BODIES & THE INDIGENOUS RIGHTS — WORKING FROM OUTSIDE

Set expectations honestly: the levers are real but external and constrained, so the prize is exposure and pressure, not a domestic stop.

The Constitutional Illegality

The distinctive lever is the **constitutional illegality**: the Arco Minero was created without the Article 129 environmental study and the Article 120 Indigenous consultation, and the National Assembly rejected it — so it is illegal by Venezuela's own supreme law, an instrument unenforceable at home but powerful abroad. Carry the illegality to the international bodies.

The International Bodies and the Indigenous Rights

The **Inter-American Commission and the UN bodies** have taken up the lack of consultation and the toll, and the **Indigenous peoples' rights and territorial defence** are a real, rights-based foundation. Engage the international bodies and anchor the fight in Indigenous rights.

The Documentation and the Sourcing Frameworks

The **international documentation and Amazon concern** put the harm before the world, and the **mercury and responsible-sourcing frameworks** reach the gold and coltan flowing to global markets. Pursued together — the constitutional illegality, the international bodies and Indigenous rights, and the documentation and sourcing — these levers press the case from outside, while protecting everyone.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case, always externally and safely. **For the Inter-American Commission and the UN**: here is a project illegal under Venezuela's own Constitution, violating Indigenous consultation and rights. **For the Indigenous rights bodies**: here are territories and rights to defend. **For the world's Amazon movement**: here is a rainforest crisis long ignored. **For the gold and coltan buyers**: here is metal whose mercury and

origins your sourcing rules should reach. **For the world:** here is a constitutional illegality and a human and environmental toll. **The golden rule:** carry the constitutional illegality abroad, engage the international bodies, anchor the fight in Indigenous rights, document before the world, press the sourcing — and never confront the armed actors or expose anyone.

STEP 5: MEDIA STRATEGY

Media must be handled with the greatest care, and entirely through external channels. Frame any attention around **the constitutional illegality and the Amazon:** a mining project illegal under Venezuela's own Constitution, tearing up Indigenous territories and rainforest, poisoning rivers with mercury — never in a way that confronts the armed actors or exposes anyone. Carry it through the international press, the Amazon and human-rights movements, and the Indigenous networks. A few cautions govern everything: never confront the armed actors; never expose anyone who documents or speaks; work from outside; and let the constitutional illegality and the Amazon crisis carry the weight.

EMAILS & LETTERS

Keep every message external, illegality- and rights-grounded, and absolute in protecting everyone.

8A — To the Inter-American Commission: set out the project's illegality under Articles 129 and 120 and the human toll.

8B — To a UN body: present the lack of Indigenous consultation and the environmental harm.

8C — On the constitutional illegality: document the missing study and consultation and the National Assembly's rejection.

8D — To an Indigenous rights organisation: coordinate the defence of the territories and rights.

8E — On the mercury and sourcing: press the responsible-sourcing frameworks on the gold and coltan.

8F — To the international Amazon movement: connect the harm to the global rainforest concern.

8G — On the documentation: share the satellite and safely-gathered evidence with international networks.

8H — To the international public: summarise the constitutional illegality and the Amazon crisis — exposing no one and confronting no one.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: assemble the constitutional illegality — the missing Article 129 study, the missing Article 120 consultation, the National Assembly rejection — and the documented harm; identify the international body or sourcing framework; write the one-page external case. **The fastest-moving levers:** the constitutional illegality carried to the international bodies, and the Indigenous rights. **Emergency action:** where the harm is documented, the Inter-American Commission, the UN, and the Amazon movement are the sharpest, safest handles, all from outside. Throughout, never confront the armed actors, never expose anyone, and work only externally.

WHEN THE SYSTEM IS TILTED

The field here is not merely tilted but collapsed and dangerous, with armed actors enforcing much of the harm. Recognise it plainly and accept the aim — not a domestic stop, but the illegality carried abroad, the international bodies engaged, the Indigenous rights defended, the harm documented. Lean only on the external levers: the constitutional illegality, the international bodies, the Indigenous rights, the documentation, the sourcing frameworks. And accept the honest limits — the institutions have collapsed, the armed actors are mortal danger, the risk to documenters is severe — while still pressing the case from outside and protecting everyone.

WHEN IT'S ACTUAL VIOLENCE — AND WHO IS AT RISK

Here the danger is not hidden corruption but armed actors — *sindicatos*, guerrillas, and entangled military — who enforce the mining by force, and a state whose institutions have collapsed as protectors. Respond only through the **entirely external channels**: the constitutional illegality, the international bodies, the Indigenous rights, the documentation, the sourcing frameworks. Never by confronting the armed actors, which is mortal danger. **On safety and protection**: this is the guide's most important note, and it governs everything. Much of the harm is enforced by armed men; journalists and observers have been detained, communities threatened and displaced. Never confront the armed actors; never expose anyone who documents or speaks; work mostly from outside, Indigenous-led where safe; gather testimony only through safe, trusted channels; and protect everyone absolutely. Protection is the governing rule.

INTEGRATION & TIMELINE: RUNNING ALL FIVE STEPS TOGETHER

The steps run in parallel, mostly from outside. The documented harm feeds the constitutional-illegality case, the international bodies, and the Indigenous-rights defence at once; the Amazon movement and diaspora carry it; the sourcing frameworks reach the metal; nothing confronts the armed actors or exposes anyone. A rough timeline: **weeks one to four**, assemble the illegality and the documented harm; **months two onward**, carry it to the Inter-American Commission, the UN, and the Amazon movement, and press the sourcing; **through the long external effort**, sustain the exposure and pressure. The core discipline: external, illegality- and rights-grounded, Indigenous-led where safe, and absolute in protecting everyone.

FINAL ASSESSMENT

Venezuela is among the hardest and most dangerous grounds in this guide, and this guide does not pretend otherwise. It does not claim the collapsed courts can protect, or that the armed actors can be safely confronted, or that victory is promised — none of that is true, and the danger to anyone who documents or speaks is severe. What it claims is real: that the Orinoco Mining Arc was created without the environmental study Article 129 of the Constitution requires and without the Indigenous consultation Article 120 requires, and was rejected by the National Assembly, so that it is illegal by Venezuela's own supreme law — an illegality unenforceable at home but powerful abroad; that the Inter-American Commission and the UN bodies have taken up the harm; that Indigenous peoples' rights and territorial defence are a real foundation; that the world's concern for the Amazon can be reached; and that the gold and coltan can be pressed through the sourcing frameworks. These tools are general, reaching the mining harms across the Amazon and Orinoco south, with the Arco Minero the central case. The levers are external, and the prize is the illegality carried abroad, the international bodies engaged, the Indigenous rights defended, and the harm documented — not a domestic stop. For a country whose institutions have collapsed and whose forests are

torn by armed men, that external work — carried from outside on a project illegal under the nation's own Constitution, and protecting everyone absolutely — is not a lesser ambition. It is the only responsible and effective one.